

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA**

JOSEPH KIRCHNER,
Plaintiff,

v.

MIKE JOHNSON et al.,
Defendants.

Case No. 1:25-cv-02735-ACR

**PLAINTIFF'S SURREPLY TO THE CORPORATE
DEFENDANTS' REPLY IN SUPPORT OF THEIR
JOINT MOTION TO DISMISS (ECF NO. 75)**

Plaintiff files this Surreply under the Court's Minute Order of September 26, 2026, granting his Unopposed Motion for Leave (ECF No. 76). It is confined to matters the Reply (ECF No. 75) presents for the first time and to one attribution the Reply makes to the Opposition (ECF No. 74) that the Opposition does not support. Plaintiff does not reargue the Opposition and does not address the arguments in the Memorandum (ECF No. 70-1) that the Reply leaves where the Opposition answered them.¹

I. THE REPLY ATTRIBUTES TO PLAINTIFF A CONCESSION HE DID NOT MAKE
(COUNT VIII)

The Reply states that Plaintiff "acknowledges that the pleading defects raised in the MTD (see MTD 32-33) 'cannot be cured by amending the . . . complaint,'" and asks that Count VIII be dismissed "without leave to amend." ECF 75 at 20 (citing ECF 74 at 41). The words quoted are Plaintiff's description of the movants' authorities, not a statement about his own claim. The sentence reads in full: "The contrary authority the motion collects holds only that the defect cannot be cured by amending the same complaint; none holds the claim extinguished." ECF 74 at 41. The paragraph in which it sits argues the opposite of what the Reply attributes to it: that the registration requirement of 17 U.S.C. § 411(a) is "a precondition to filing a claim that does not

¹ Citations to ECF 75 use the CM/ECF page stamped at the top of the page, following the Reply's own convention. ECF 75 at 8 n.1. Citations to the Opposition, the Third Amended Complaint (TAC), and ECF No. 57 use the same convention; citations to the Memorandum (ECF No. 70-1) use its printed page, as the Opposition did. Findings cited by identifier (SC-, NF-, D-) are the incorporated forensic exhibits identified in the Opposition.

restrict a federal court's subject-matter jurisdiction," *Reed Elsevier, Inc. v. Muchnick*, 559 U.S. 154, 157 (2010); that registration cures the defect; and that the limitations period, which runs "three years after the claim accrued," 17 U.S.C. § 507(b), keeps a registered refiling live. ECF 74 at 40–41.

The Reply does not mention *Reed Elsevier* or § 507(b). It converts Plaintiff's account of the movants' cases into Plaintiff's admission. Plaintiff seeks no leave to amend Count VIII; the only question is whether the dismissal is with prejudice, and the Opposition showed that it cannot be. Count VIII should be dismissed without prejudice.

II. THE REPLY'S NEW ARGUMENT FROM ECF NO. 57 IS CONTRADICTED BY THE PAGES IT CITES (COUNT XIII)

The Memorandum does not cite ECF No. 57. The Reply builds a new argument on it: that Plaintiff's Computer Fraud and Abuse Act theory against Comcast fails because the "log records" concern Comcast's Xfinity routers rather than Plaintiff's own GL-MT6000, and because "the logs do not say that Comcast initiated the activity or that it occurred through TR-069." ECF 75 at 25–26 (citing ECF 57 at 16–17 and ECF 57-2). Two answers.

First, the Opposition argued the Xfinity equipment in the alternative: "as to ISP-provided customer-premises equipment, the incorporated record establishes the restriction directly: Plaintiff's customer-facing 'Remote Management' setting was disabled, and the log records that the ISP backend overrode that setting remotely 'regardless of customer-facing 'Remote Management' settings' (Finding D-20)." ECF 74 at 49 (Ex. D-20, ECF 51-54 at 116). That is the theory the Reply must meet, and it meets it only by asserting what the logs "do not say."

Second, the pages the Reply cites say it. ECF No. 57 at 16–17 records that on October 29, 2025, at 18:49:27 and 19:26:18, the process CcspPandMSsp[4467] logged the entry "Account admin's password changed," entries in the log itself, ECF 57-2 at 2, and identifies that

process: "CcspPandMSSp is Comcast's CableHome/Provisioning-and-Management subsystem — the TR-069/CWMP back-channel operated remotely by Comcast; it is not a user-facing process and cannot be triggered through the consumer web interface. Plaintiff did not initiate either password change." ECF 57 at 16–17 ¶ 24(a). The same pages record three logins on October 31, 2025 by the mso account, "Comcast's operator/technician-tier account, distinct from the customer admin account and not part of any consumer-issued credential set." *Id.* at 17 ¶ 24(d). The Reply chose ECF No. 57 as its source, and that source attributes the changes to Comcast's provisioning daemon and its operator account. The filing itself states the override and names the process. Exhibit D-20's Technical Context table records, for "Remote Management," "Disabled in customer interface," and for "ISP Backend Access," "Available via TR-069/CWMP," and finds that the "ISP backend can override customer settings remotely via TR-069 protocol regardless of customer-facing 'Remote Management' settings." ECF 51-54 at 116. Exhibit D-20's own findings read the unauthenticated sessions as "suggesting TR-069 backend access" and the change rates as "proving automated backend manipulation." ECF 51-54 at 112–113. Whether those attributions are proved is for the merits. The Reply's statement that the cited record does not attribute the activity to Comcast or to TR-069 is not what the cited record says.

The Reply's point that Plaintiff "never identifies any policy, agreement, technical document, or equipment rule" (ECF 75 at 26) is answered at ECF 74 at 50: the conduct pleaded is unauthorized access itself, the obtaining and altering of what the accesser "is not entitled so to obtain or alter," 18 U.S.C. § 1030(e)(6), and a customer-facing control set to "off" is the entitlement boundary pleaded. What is new is the Reply's "acquisition" point, which borrows a concession made about a different statute: Plaintiff conceded that the conduct pleaded against Comcast "is interference with the routing and availability of communications, not the acquisition

of their contents," and that he "does not rest the Wiretap Act's contents element on Comcast." ECF 74 at 48. A concession about message contents under 18 U.S.C. § 2511 is not a concession about information under § 1030, and the information is on the pages the Reply cites: three operator-account logins on Plaintiff's router, an administrator credential changed twice by Comcast's provisioning process, and a customer setting overridden from the backend. ECF 57 at 16–17; ECF 51-54 at 116.

III. THE REPLY'S NEW "SOFTWARE HAS NO INTENT" ARGUMENT ANSWERS A CLAIM PLAINTIFF DID NOT PLEAD (COUNTS XII–XIII)

The Reply argues for the first time that Plaintiff's claims against Anthropic fail because "an AI coding assistant" "lack[s] consciousness and therefore lack[s] intent," citing *Alice Corp. Pty. Ltd. v. CLS Bank Int'l*, 573 U.S. 208, 225 (2014), and *Thaler v. Perlmutter*, 130 F.4th 1039, 1046, 1048 (D.C. Cir. 2025). ECF 75 at 27. Neither case concerns the mental state of a statutory defendant. *Alice* decides patent eligibility under 35 U.S.C. § 101; *Thaler* decides whether a machine can be the "author" of a copyrighted work. Plaintiff has not sued a machine. He has sued the corporations that wrote, named, configured, shipped, and remotely operate the code, and the Complaint pleads their intent through their own acts: the function their engineers named DANGEROUS_uncachedSystemPromptSection (TAC ¶¶ 14, 67; Finding SC-4); the directive in Anthropic's own voice, "Make sure that you NEVER mention this reminder to the user" (Finding NF-37); Apple's injected command that the model "may not EVER disclose to the user that you have seen it" (TAC ¶¶ 34, 91); the per-account flag force-enabled against Plaintiff's own account identifier (Finding NF-47); the migration functions that silently rewrote Plaintiff's local configuration file (TAC ¶ 140); and the shipped directive that the agent bypass the operator's sandbox on its own initiative, "don't ask, just do it" (TAC ¶ 284). The Complaint pleads that these outputs "were authored by Anthropic and OpenAI engineers, deployed through corporate

release pipelines, remotely configured through GrowthBook feature-flag infrastructure

Defendants control . . . and ratified by corporate management." TAC ¶ 292. ECF 74 at 47–51 set this out; the Reply does not engage it.

The Reply's own authority points the same way. It cites *Butera & Andrews v. Int'l Bus. Machs. Corp.*, 456 F. Supp. 2d 104, 110 (D.D.C. 2006), for the proposition that "it is more reasonable to conclude that an act is intentional . . . when it serves a party's self-interest." ECF 75 at 26. The Complaint pleads the self-interest: fake anti-distillation tool definitions injected into the user's own requests, consuming his paid tokens to serve "Anthropic's competitive interest in preventing model distillation" (TAC ¶¶ 61, 202, 257; Finding NF-20; ECF 51-3 at 51–53); user data transferred as consideration in the Defendants' vendor contracts, at a discount "reflecting the commercial value of the data rights Anthropic transfers" (ECF 51-3 at 35); and competitive intelligence drawn from the shared sub-processor data pool (ECF 51-3 at 42). The Opposition made the point. ECF 74 at 38, 47, 49. A tool has no mind. The party that designs it, names its functions, and aims it at an account does, and that is the party sued.

IV. THE REPLY'S "SOFTWARE IS NOT A PRODUCT" ARGUMENT APPEARS NOWHERE IN THE MEMORANDUM IT CITES (COUNT XVIII)

The Reply opens its products-liability section: "Plaintiff's products liability claims fail because Defendants' software is not a 'product' within the meaning of the doctrine, and certainly not as a matter of D.C. law. See MTD 54-56. Plaintiff's Opposition does not credibly dispute this." ECF 75 at 30. The cited pages of the Memorandum (its Section III.Q) contain no such argument. They argue the elements of design defect, failure to warn, and manufacturing defect under *Rollins*, *Warner Fruehauf*, *Aston*, and *Pinkett*; the word "software" does not appear in the section, and no authority is cited for the proposition that software is not a product. ECF 70-1 at 43–45. The Opposition did not dispute an argument that had not been made. The Complaint, for

its part, pleads the point and its authority: the AI products "are 'products' within the meaning of strict product-liability doctrine under DC law and Minnesota law," citing *Garcia v. Character Technologies, Inc.*, 2025 WL 1461721 (M.D. Fla. May 21, 2025). TAC ¶ 318. The place to contest that proposition was the Memorandum, with authority; a sentence in reply, attributed to pages that do not contain it, is not a ground the Court can act on.

V. THE NEGLIGENT-INFLECTION CLAIM PROCEEDS ON THE SPECIAL-RELATIONSHIP THEORY (COUNT XVII)

The Reply argues for the first time that Plaintiff "has conceded" the zone-of-danger theory of Count XVII by not responding to it, citing *Betz v. Jefferson Cap. Sys., LLC*, 68 F. Supp. 3d 130, 136 (D.D.C. 2014). ECF 75 at 30. The Opposition pressed Count XVII on the special-relationship theory, identifying the undertaking (the psychiatric-monitoring directive language) and the governing authority, *Hedgepeth v. Whitman Walker Clinic*, 22 A.3d 789, 802 (D.C. 2011) (en banc), and preserved the zone-of-danger theory in a sentence as an alternative. ECF 74 at 57–58. To narrow the dispute, Plaintiff withdraws the zone-of-danger alternative as to Comcast under Count XVII and proceeds on the special-relationship theory against Anthropic and OpenAI. That withdrawal is not a statement about the lawfulness of the conduct pleaded against Comcast, which proceeds under the counts in which Comcast is named, including Counts I, II, VI, and XIII. *Betz* therefore has no work to do: the theory Plaintiff presses was briefed, ECF 74 at 57–58, and the Reply acknowledges as much: Plaintiff "clarifies that his claim against Anthropic and OpenAI rests on a special-relationship theory." ECF 75 at 29.

VI. THE REPLY'S CROSS-REFERENCE TO AN INCORPORATION DISCUSSION POINTS TO NOTHING

Answering the group-pleading argument, the Reply states that attaching exhibits does not satisfy Rule 8 and refers the Court to "supra Section II.A. (discussing improper incorporation)."

ECF 75 at 31. Section II.A of the Reply (ECF 75 at 8–9) argues that the claims are patently insubstantial; it does not discuss incorporation. Nowhere does the Reply address the Opposition's threshold argument that Federal Rule of Civil Procedure 10(c) makes the Complaint's exhibits "a part of the pleading for all purposes," or the Opposition's showing that the three "sift" authorities the Memorandum relied on do not hold what the Memorandum said they hold. ECF 74 at 7–10. Beyond that sentence, the Reply's only gesture toward the point is the unsupported statement that "neither Defendants nor the Court are obligated to hunt through thousands of pages of exhibits." ECF 75 at 21. The Opposition's answer, that it supplies for every count the specific finding, source file, and line, so that no hunting is required, ECF 74 at 9–10, stands unanswered.

VII. CONCLUSION

For these reasons, and those stated in the Opposition, the Corporate Defendants' Joint Motion to Dismiss should be denied as to Counts I–VII, IX–XIII, and XV–XVIII (Count XVII as to Anthropic and OpenAI); any dismissal of Count VIII should be without prejudice; Count XIV stands as the Opposition stated it, ECF 74 at 52, 60; and, should the Court find any surviving count deficiently pleaded, Plaintiff should be granted leave to amend.

Respectfully submitted,

/s/ Joseph Kirchner

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Dated: September 29, 2026